



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

DEC 21 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12601

EXPIRATION DATE: March 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Great Lakes Chemical Corporation
Indianapolis, IN
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time, one-way transportation in commerce of chloropicrin in approximately 650 combination packagings which meet the requirements of § 173.226(c) with the exception of the permeation requirements for plastic packagings. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirement specified in § 172.301(c); the permeation requirement specified in § 173.24(e)(3) for plastic packagings; and §§ 173.227(a) and 177.801 in that the plastic inner packaging does not meet the requirements of § 173.24(e)(3).
5. BASIS: This emergency exemption is based on the application of Great Lakes Chemical Corporation dated December 18, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chloropicrin	6.1	UN1580	I, Hazard Zone B

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are approximately 650 combination packagings which conform to the requirements specified in § 173.226(c) with the exception of the permeation requirements for plastic packagings.

b. OPERATIONAL CONTROLS -

(1) Each inner plastic bottle may not exceed one quart capacity.

(2) The one-time, one-way transportation is limited to motor carriers under contract with Great Lakes Chemical Corporation.

(3) Packagings authorized by this exemption must be returned to the Great Lakes Chemical Corporation facility in McFarland, CA.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING - The marking requirement contained in § 172.301(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: CHHOCHMAN